

25VECV02246 25VECV02246

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-17

Motion: PLAINTIFF'S MOTION TO COMPEL THE DEPOSITION OF DEFENDANT'S PERSON MOST KNOWLEDGEABLE AND FOR SANCTIONS

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Case Number: 25VECV02246 Hearing Date: August 17, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MARIA HERNANDEZ

GARCIA, an

individual,

Plaintiff,

vs.

JAGUAR LAND ROVER NORTH

AMERICA, LLC, a limited liability

company,

and DOES 1 through 10, inclusive,

Defendants.

CASE NO: 25VECV02246

[TENTATIVE]

ORDER RE:

PLAINTIFF'S

MOTION TO COMPEL THE DEPOSITION OF DEFENDANT'S

PERSON

MOST KNOWLEDGEABLE AND FOR SANCTIONS

Dept. W

8:30 a.m.

August 17, 2026

[TENTATIVE] ORDER: The Court GRANTS

Plaintiff's Motion to Compel an Initial Deposition of Defendant's PMK, pursuant to CCP § 871.26. The Court also GRANTS Plaintiff's request for sanctions in the modified amount of \$2,500. Finally, the Court schedules an OSC Re: Sanctions against Defendant and their counsel of record for September 21, 2026.

Background

This is a lemon law case. Plaintiff

Maria Garcia alleges that on May 21, 2023, Plaintiff purchased a new vehicle, manufactured by Defendant Jaguar Land Rover North America, LLC. Plaintiff alleges that the vehicle exhibited numerous defects, which could not be cured after a reasonable number of repair attempts.

On April 22, 2025,

Plaintiff brought suit against Defendant, alleging that Defendant violated the Song-Beverly Act.

On May 27, 2025,

Defendant Jaguar Land Rover North America, LLC, filed their Answer.

On October 24, 2025,

Plaintiff moved to compel the initial deposition of Defendant's PMK. On December 8, 2026, the Court denied this motion, based on the assurances of Defendant's counsel that a deposition had been scheduled for March 5, 2026.

On March 4, 2026,
Defendant cancelled the deposition.

Now, Plaintiff once
again moves to compel the initial deposition of Defendant's PMK, pursuant to
CCP § 871.26.

Discussion

i)
Motion to Compel

Plaintiff moves to compel the production of Defendant's PMK, as
required under CCP § 871.26(c).

In
2024, the California Legislature passed AB 1755, which created multiple new
procedural and timing rules for lemon law cases. As part of this legislation,
the legislature enacted CCP § 871.26, which outlines mandatory discovery
requirements for all Song-Beverly cases. This includes the rule that, "[w]ithin
120 days after the filing of the answer or other responsive pleading, all
parties have the right to conduct initial depositions, each not to exceed two
hours of the following deponents: . . . [including] the person who is most
qualified to testify on the defendant's behalf." (CCP § 871.26(c)(2).)

Here,
Defendant filed their Answer on May 27, 2025. (See, Answer.) This made the
120-day deadline for automatic discovery disclosures under CCP § 871.26(c) as
October 22, 2025. Defendant failed to produce a PMK for deposition by this date.
(Diamse Decl. ¶ 10.) Under CCP § 871.26(c)(2), the only question this Court
asks is whether a party produced a witness within 120 days of the Answer being
filed. The Court finds that Defendant has failed to abide by the mandatory
initial discovery procedures outlined in CCP § 871.26.

Notably, when this issue was raised in the first motion, the Court denied
motion as moot, because Defendant's lawyer submitted a sworn declaration
stating that, "Defendant . . . offered to make their PMK available for
deposition on March 5, 2026. Moreover, Plaintiff has accepted this date."
(O'Shea Decl. Re: Original Opp. ¶ 12; see also, Minute Order, 12/8/25.) The

Court assumed that because this deposition had been rescheduled on a firm date, there was no need for the Court to intervene.

However, it appears

that on March 4, 2026, just one day before the scheduled deposition, Defendant told Plaintiff the initial deposition would have to be rescheduled. (Diamse Decl. ¶ 14.) Tellingly, Defendant failed to provide any alternative dates over the next few weeks. (Ibid.) Defendant is now long past the 120-day timeline set out in CCP § 871.26, and the initial deposition of their PMK has yet to take place.

For these reasons, the Court GRANTS Plaintiff's Motion to Compel Deposition.

ii)

Sanctions

Additionally, Plaintiff requests a total of \$4,195.00 in sanctions in conjunction with this motion. (Mot. for Compliance, p. 6:18-23.) \$2,500 of this request is based on statutory sanctions, and \$1,695.00 is based on Plaintiff's reasonable fees and costs. (Ibid.)

a) Statutory Sanctions

As

to the statutory sanctions, under CCP § 871.26(j), "Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: (2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c)." (CCP § 871.26(j)(2).) Thus, absent good cause, this Court must impose statutory sanctions.

Here, the last-second

cancellation of this deposition indicates that Defendant did not act with good cause in failing to abide by the statutory timeline for this initial deposition. Thus, the Court finds Plaintiff's request for \$2,500 in statutory sanctions appropriate.

b) Additional Sanctions

Additionally, Plaintiff requests \$1,695.00 in monetary sanctions under CCP § 2023.010(d) and 2023.300(d). (Mot. to Compel, p. 6:2-23.) Given that this motion to compel was brought under CCP § 871.26, which already provides for mandatory statutory discovery sanctions, the Court finds no basis for Plaintiff's request for additional discovery sanctions under these separate statutes.

In their motion and Reply, Plaintiff points to the following language from CCP § 871.26: "Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows . . ." (Id. p. 6:4-5; see also CCP § 871.26(j) [emphasis added].) The Court is unconvinced that this language allows for the imposition of sanctions under CCP § 2023.010(d) and 2023.300(d), as those statutes are for generic discovery disputes. They are not a part of the same "chapter" as this Song-Beverly statute.

For these reasons, the Court DENIES Plaintiff's request for an additional \$1,695.00 in monetary sanctions.

c) OSC Re: Sanctions

That being said, the Court must address how Defendant has conducted itself in this discovery dispute. Defendant assured this Court that the original October 2025 discovery dispute was moot. The Court took Defendant at its word. Unfortunately, Defendant abused this Court's trust by cancelling the deposition the day before it was scheduled to take place. In this Court's view, this amounts to an abuse of the discovery process, and potentially a willful misrepresentation to the Court.

For these reasons, the Court schedules an OSC Re: Sanctions against Defendant and its attorney of record for September 21, 2026.

Conclusion

The Court GRANTS Plaintiff's Motion

to Compel an Initial Deposition of Defendant's PMK, pursuant to CCP § 871.26.
The Court also GRANTS Plaintiff's request for sanctions in the modified amount
of \$2,500. Finally, the Court schedules an OSC Re: Sanctions against Defendant
and their counsel of record for September 21, 2026.

IT
IS SO ORDERED.

Plaintiff TO GIVE NOTICE.

August 17, 2026